WORK ORDER

Plot No.PL03, Rajiv Gandhi Infotech Park, Phase II, Hinjewadi,
Pune, Maharashtra, India, 411057

GSTIN : 27AAACE4258K1ZH
PAN : AAACE4258K
CIN : U85110KA1995PTC018887

VENDOR DETAILS

NIHVA Technologies Pvt ltd
Vendor Code :1006433

B/1, COROMANT HSG SOCIETY, SECTOR 27, PRADHIKARAN NIGDI, Pune, Maharashtra, India, 411044

State Name : Maharashtra
State Code : 13
PAN : AAECN0437H
Origin City. : IN
GSTIN : 27AAECN0437H1ZM
Contact No. : 2066304033
Email-ID : arjun.patil@nihva.com

ORDER DETAILS

WO NUMBER : 4900031215

PR NUMBER : 5000038394

DATE : 20.07.2020

Version No. :

SHIP TO

Embassy Services Private Limited

"Embassy Industrial Parks - Chakan, Non,
"cunningham Road, No.34, 7th Cross Rd", "A79,
Phase II, Chakan Industrial Area", Pune,
Maharashtra, India, 410501

PAYMENT DETAILS

Payment Terms: Z030-within 30 days Due net

WO Currency : INR

Payment Terms : 30 days from the date of submission of invoice with necessary audit and approvals

S.No.	Description	QTY	UOM	Rate/Unit	CGST Value	SGST Value	IGST Value	Basic Value
10	**Supply of Spares of Boom Barrier**							18,000.00
	Discount %							
	The Item covers the following services:							
Line	HSN/SAC Description	Qty	Unit	Unit Price	CGST	SGST	IGST	Net Value
10	995419 Base Plate, Round Casting part	1.00	EA	18,000.00	0.00	0.00	3,240.00	18,000.00
	Taxes: 18% Supplies outside the state - Service							
	Base Plate, Round Casting part for Boom barrier							

Total Net Value : 18,000.00

	GST@5%	GST@12%	GST@18%	GST@28%
SGST	0.00	0.00	0.00	0.00
CGST	0.00	0.00	0.00	0.00
IGST	0.00	0.00	3,240.00	0.00
Net Value	0.00	0.00	18,000.00	0.00

Total Value : 18,000.00

Total IGST Value : 3,240.00

TOTAL AMOUNT INR 21,240.00

TOTAL AMOUNT IN WORDS RUPEE TWENTY-ONE THOUSAND TWO HUNDRED FORTY ONLY

Note : All Special Terms and Conditions , if mentioned, will prevail over the general terms and conditions.
General Terms & Conditions:

The Purchase Order [PO] placed by Embassy Services Pvt Ltd., [ESPL] forgoods and/or services is subject to these standard PO terms andconditions and shall be deemed to have been agreed by the vendor andaccepted for delivering the goods, and/or performing the services.

1. The PO consists of: (a) these Standard PO terms and conditions; (b)the applicable PO. ESPL's acceptance of, or payment for, Goods and/orServices will not constitute ESPL's acceptance of any additional ordifferent terms in any Vendor Proposal.

2. Delivery of Goods and Services: Vendor agrees to supply and/ordeliver the Goods and/or perform the Services at its own expense including delivering goods to the Delivery Point and invoicing terms, shipping, packing, and other instructions as per the PO.Vendor warrants that all goods delivered shall be merchantable, fit andfree from defects, whether latent or apparent. Vendor warrants that allservices performed hereunder shall be performed in a good andworkmanlike manner by qualified, trained personnel, free from anyerrors. No payment whatsoever will be charged on freight,transportation, insurance, shipping, storage, handling, demurrage, packaging or similar charges unless agreed in writing by ESPL. Risk of loss of all goods shall remain in Vendor until receipt of goodspursuant to the delivery terms. Notwithstanding restrictive legends tothe contrary, title to plans, drawings and specifications for goodsshall be vested and remain with Buyer and may be used by Buyer for anypurpose.

3. Time is the essence of contract with respect to delivery of the Goodsand performance of Services and all obligations thereunder.

4. Inspection; Acceptance and Rejection: All receipt of Goods andperformance of Services shall be subject to ESPL's right of inspectionand upon written acceptance of ESPL. ESPL shall either accept the Goodsor Services ('Acceptance') or reject them. ESPL shall have the right toreject any Goods or Services that are not in conformance with theSpecifications of ESPL or any term of this PO at Vendor's expense andrisk. ESPL at its discretion may either be entitled to obtain refund ofall amounts paid by ESPL to Vendor for rejected Goods/services; orreplacement of Goods and specific performance of the services within thetime specified by ESPL. ESPL's inspection, testing, or Acceptance or useof Goods/Services hereunder shall not limit or otherwise affect Vendor'swarranty and representation obligations hereunder with respect to theGoods or Services and such warranties and representations shall surviveinspection, test, Acceptance and use of Goods/Services.

5. Price/Payment Terms: Price of Goods and/or Services shall be as setout in the applicable PO. Any Price increase/changes not expressly setout in the PO shall not be effective unless agreed to in advance inwriting by ESPL. Vendor shall issue all invoices on a timely basis andas per the format provided by ESPL only. The invoice shall reference theapplicable PO number and date. ESPL shall pay the undisputed withininvoices within thirty (30) days from the invoice date. ESPL shall haveall right to withhold payment of any invoiced amounts that are disputedin good faith until the parties reach an agreement and such withholdingof disputed amounts shall not be deemed a breach of this PO terms andconditions.

In the event of discrepancy between invoice or any document reported byVendor in the statutory return(s) and electronic credit register ofESPL, Vendor shall be responsible to rectify such discrepancy withinfifteen (15) days of identification of discrepancy.

6. Taxes. (a) Unless otherwise stated in a PO, all prices in the PO areexclusive of any taxes. Vendor shall separately itemize all applicabletaxes each invoice. ESPL will pay all applicable taxes to Vendor whenthe applicable invoice is due and ESPL may withhold from all amountspayable to Vendor all applicable withholding taxes and to remit thosetaxes to the applicable governmental authorities as required byapplicable laws. 'Indirect Taxes' shall include Central Goods andServices Tax ('CGST'), Integrated Goods and Services Tax ('IGST'), StateGoods and Services Tax ('SGST') levied by the States, Union TerritoryGoods and Services Tax ('UTGST') levied by the Union Territories, alliedCess, duties and taxes (hereinafter collectively referred to as 'GSTLaws').

(b) Vendor shall intimate ESPL regarding the change in Indirect Taxesapplicable on the Scope of the contract. Vendor shall pass on to ESPLany benefits including but not limited to increase in credits of inputtaxes or decrease in tax rates or elimination of non-creditable taxcosts (such as excise duty, CST, CVD, SAD, Entry tax, Octroi or anyother indirect taxes) from the system. Any change in price of the scopeof supply on account of implementation of GST Laws shall be inaccordance with the anti-profiteering provisions as provided under theGST Laws. ESPL shall not be liable to reimburse Vendor for any increasein any non-creditable taxes due to the procurements made by Vendor. ESPLshall deduct/withhold any Indirect Taxes, in the manner as may beprescribed, from the price payable to the Vendor and shall furnishappropriate documentation for the same. However, Vendor shall be solelyliable for charging appropriate Indirect Taxes and timely deposit withstatutory authorities as applicable.

(c) Any interest/penalties or recoveries by authorities due to Vendor'sdefault shall be set off against Vendor by ESPL. Vendor shall beresponsible for compliance with the 'Time of Supply' provisions underthe applicable GST Laws. Vendor and ESPL to mutually agree upon the'Place of Supply' for the Scope under this Contract in accordance withthe GST Laws. Appropriate disclosures in the statutory returns orotherwise within the prescribed time limits. Vendor shall keep ESPLindemnified in respect of all claims, recoveries in respect of theabove.

(d) In respect of input tax credits Parties shall mutually agree thetimelines and mechanism for reconciling the mismatches between Vendorsand ESPL.'s disclosures in the statutory returns.

(e) In an event of denial of credits to ESPL arising due to non-paymentof taxes or non-compliance with the GST Laws by the Vendor, Vendoragrees that ESPL shall have the right to withhold such amounts from thesubsequent payments to Vendor till the input tax credit so denied isreinstated. In such cases, ESPL shall recover interest @ eighteenpercent (18%) per annum for the duration of denial of credit.

(f) Vendor represents and warrants that it shall comply with GST Lawsand the requirements therein. Vendor shall solely incur and bear anyadditional recoveries or tax incidence due to non-compliances with theGST Laws. Vendor shall keep ESPL indemnified of the consequences, ifany, arising due to reduction in GST compliance ratings below 80%.Vendor undertakes that there shall be no loss to Embassy due to IndirectTaxes during transition period.

(g) Vendor shall always and without recourse to ESPL be solelyresponsible for all taxes including 'Place of supply', 'Time of Supply'and any consequences, demands arising in relation to thereof.

(h) Vendor shall be solely responsible for: Issuing and making availableto ESPL all requisite documents in the manner ESPL under GST Lawsincluding but not limited to invoices, advance receipt vouchers, creditnotes, debit notes, e-permits and way bills. Such documents tospecifically capture mandatory details including but not limited toGSTIN, HSN/ SAC, description of the supply, value, applicable IndirectTaxes, place of supply, as prescribed under GST Laws;

7. Vendor shall obtain and maintain at its own expense the insurancecoverage as applicable and as per occurrence. Vendor will name Companyand its directors, officers, employees, and agents as an additionalinsured in the commercial general liability policy, to the extent ofcontractual liability assumed by Vendor. Vendor will furnish the copy ofpolicies evidencing the foregoing coverage as and when requested for byESPL.

8. The Vendor shall provide appropriate Bank Guarantee at first demandas per the format provided by ESPL and from a nationalized bank only forthe contract value or additional value as agreed with ESPL.

The vendor shall be deemed to be an "independent contractor" and shallnot be entitled to any benefits given to its employees and warrants thatthe personnel performing the services/supplying the goods shall alwaysbe either contractors/ employees of vendor and that nothing in theseterms shall create an employment relationship with ESPL.

9. Termination: ESPL at its discretion terminate immediately if:

i. the vendor's services or goods are in breach of any of the agreedconditions hereby and fails to cure the breach.

ii. there is statutory non-compliance.

iii. in case of insolvency or enters into a scheme of arrangement orcomposition with its creditors, or a receiver is appointed, or a windingup order is made

ESPL may terminate this agreement for any reason on providing thirty(30) days' written notice.

10. Applicable Law: The vendor shall comply with all applicable law,obtain licenses as required, international or national standards,industry standards, the requirements of any statutory or otherregulatory authority as notified in carrying out the services. Thevendor shall comply with all/any applicable occupational health andsafety laws, regulations etc. and ensure compliance on any increase inMinimum wages for labor/personnel as notified by the relevant statutoryauthority as per the applicable state circular/notification.

11. Governing Law <(>&<)> Jurisdiction: The terms and conditions setforth herein shall be governed by the laws of India and subject to theexclusive jurisdiction of the courts at Bangalore.

12. General: (a) The vendor shall not assign any of its rights underthis agreement or subcontract the services or part of the serviceswithout the prior written approval of ESPL. In the event, part or allservices are subcontracted subject to ESPL's written approval, thevendor shall be liable in respect of all services carried out by suchsub-vendor. In case ESPL assigns, vendor shall execute a novationagreement to give effect to such transfer.

a. The vendor shall treat in confidential any/all information/documentsreceived or gathered from ESPL

not limited to ESPL's customer data, current and/or, technicalinformation, designs, copyrights, patents, trademarks, trade secrets,intellectual property, financial statements, surveys, maps, patentspending, business strategies, identification or, other financial,trade/commercial information, software, business procedures or routines,specifications, data generated directly or indirectly by software,hardware or devices, photographs of assets owned or located in/on/ aroundESPL, ideas, know-how, plans or drawings, prototypes, and any otherinformation that are treated as confidential by ESPL. Vendor shall useConfidential Information only for providing goods/services and shall notuse the Confidential Information for any other purpose. Vendor herebyassigns to ESPL all right, title and interest in and to the Work Productand shall be the sole and exclusive property of ESPL and Consultant willnot have any rights of any kind whatsoever in such Work Product.Consultant will not use of any Work Product in any manner without ESPL'swritten consent. In the event of breach, damages may not be an adequateremedy and ESPL shall be entitled to injunctive relief to restrain anysuch breach. Upon termination, all such information/documents will bereturned to ESPL or destroyed at ESPL's option.

b. Indemnities Vendor shall indemnify, defend and hold harmless ESPL,its Affiliates, and their respective officers, directors, employees,consultants, and agents (the "ESPL Indemnified Parties") from andagainst any claims, fines, losses, actions, damages, expenses, legalfees and all other liabilities brought against or incurred by ESPLIndemnified Parties or any of them arising out of: (a) death, bodilyinjury, or loss or damage to real or tangible personal propertyresulting from the use of or any actual or alleged defect in the Goodsor Services, or from the failure of the Goods or Services to comply withthe warranties hereunder; (b) any claim that the Goods or Servicesinfringe or violate the Intellectual Property Rights or other rights ofany person; (c) any intentional, wrongful or negligent act or omissionof Supplier or any of its Affiliates or subcontractors; (d) Vendor'sbreach of any of its obligations under this Agreement; or (e) any liensor encumbrances relating to any Goods or Services.

(d) Limitation of Liability. EXCEPT FOR VENDOR's OBLIGATIONS UNDERSECTION 12, AND EXCEPT FOR DAMAGES THAT ARE THE RESULT OF THE GROSSNEGLIGENCE OR WILFUL MISCONDUCT OF A PARTY, IN NO EVENT WILL EITHERPARTY BE LIABLE TO THE OTHER PARTY OR ANY OTHER PERSON FOR ANY INDIRECT,INCIDENTAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING ANY LOSTPROFITS, GOODWILL, OR BUSINESS OPPORTUNITY FOR ANY MATTER RELATING TOTHIS AGREEMENT.

(e) Publicity: Except as may be required by law, Vendor shall not,without the prior written consent of ESPL, which may be granted orwithheld at ESPL's sole discretion: (a) use ESPL's name, brand,trademarks or any ESPL description that would allow a third party toidentify ESPL ("ESPL's Brand"), in advertising or promotional material,publicity releases or for any other commercial purpose; (b) in anymanner advertise, publish or disclose the fact that ESPL has placed thispurchase order with vendor . Vendor shall comply with the restrictionsaccompanying ESPL's consent. Any/all subsequent uses, including but notlimited to re-publication of advertising or promotional material,duplicate or follow-up press releases or like publications shall eachrequire an updated consent, duly executed by ESPL. In no case shallvendor or an affiliate of vendor shall use ESPL's Brand or informationin a manner that disparages ESPL.

(f) Anti-bribery: Vendor shall comply with all applicable laws,statutes, regulations and codes relating to anti-bribery/anti-corruptionincluding but not limited to the Prevention of Corruption Act 1988.Vendor shall maintain adequate procedures to ensure compliance with suchlaws. Vendor will not engage in any activity or practice whichconstitutes an offence under any applicable law including not to offer,pay, consider or benefit, either directly or indirectly an inducement orreward of any kind for any services, or possible services in relation tothe goods supply/services. Breach of this clause shall be deemed amaterial breach.

13. MSMEs: Vendors/suppliers to mandatorily provide the validRegistration Certificate, under Micro Small and Medium Enterprise (MSME)Development Act, 2006 for documentation purpose. In case of non-receiptof the said Certificate, we presume that you are not registered underthe MSME Act and we shall update our records accordingly

14. Assignment / Novation : ESPL may, upon written notice to the Vendorand without the consent of the vendor, assign, transfers and novate thisAgreement/Purchase Order in connection with restructuring of itsbusiness operations, whether by amalgamation, merger, of the Company,slump sale of any of its business undertaking or any other similararrangements or otherwise to any of its affiliates or third party. Insuch case, the vendor shall continue to carry out the services andassume all its obligations and accordingly such assignee / novate shallenter into a fresh agreement or raise purchase order as the case may be,with the Vendor on terms identical to the terms and conditions of thisAgreement/Purchase Order for the supply/services agreed herein. Duringthe period and until the completion of such assignment and novation, theVendor shall continue to provide the services/supply on and subject tothe terms and conditions of this Agreement/Purchase Order.

[END OF PO TERMS AND CONDITIONS]

APPROVED BY RAJAN SRINIDHI Digitally signed by RAJAN SRINIDHI DN: cn=RAJAN SRINIDHI, c=IN, st=Karnataka, o=Personal, serialNumber=3a7662dd7cf0ade74ad296d3e4c10f2b8b0cc8127d6344388cc164e678b15eed Reason: I attest to the accuracy and integrity of this document Date: 2020.07.25 08:47:04 +05'30' Authorized Signatory EMBASSY SERVICES PRIVATE LIMITED	**ORDER ACCEPTED** M/s NIHVA Technologies Pvt ltd